

[22 GEO. 5.]

Ministry of Health

[Ch. iv.]

*Provisional Order Confirmation (Sittingbourne and  
Milton) Act, 1932.*



## CHAPTER iv.

An Act to confirm a Provisional Order of the Minister of Health relating to Sittingbourne and Milton. A.D. 1932.  
[29th February 1932.]

**W**HEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Sittingbourne and Milton) Act 1932. Short title.



A.D. 1932.

SCHEDULE.

SITTINGBOURNE AND MILTON URBAN  
DISTRICT.

*Sitting-  
bourne and  
Milton Order.*

*Provisional Order repealing a local Act and repealing or  
amending certain confirmation Acts.*

WHEREAS by the Milton Regis and Sittingbourne (Union and Extension of Urban Districts) Order 1929 as confirmed by the Minister of Health the urban districts of Milton Regis and Sittingbourne (except certain detached parts of those urban districts) together with parts of four parishes within the rural district of Milton were formed into a new urban district called the Sittingbourne and Milton urban district;

And whereas section 32 of the order of 1929 provided that the provisions of any local Act or Act for the confirmation of a provisional order which extended to the urban district of Milton Regis or the urban district of Sittingbourne or to the council of either of those urban districts should continue to apply to the area to which such Act applied immediately before the thirty-first day of March nineteen hundred and thirty with the substitution of a reference to the council of the new urban district for any reference therein to either of the existing urban district councils and that the council of the new urban district should before the thirty-first day of March nineteen hundred and thirty-two apply to the Minister of Health for a provisional order for the repeal alteration or amendment of the local Acts or Acts for the confirmation of provisional orders in force in the new urban district;

And whereas the urban district council of Sittingbourne and Milton have made an application accordingly :

Now therefore the Minister of Health in the exercise of his powers under sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title  
and com-  
mencement.

1.—(1) This order may be cited as the Sittingbourne and Milton Order 1931.

(2) The Milton next Sittingbourne Order 1884 the Milton next Sittingbourne Order 1901 the Milton Regis Order 1909 and this order may be cited together as the Sittingbourne and Milton Orders 1884 to 1931.



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(3) This order shall come into operation on the date of its confirmation by Act of Parliament.

2. In this order—

Interpreta-  
tion.

“the gas undertaking” means the gas undertaking of the urban council;

“the included part of Milton Regis” means the urban district of Milton Regis as that urban district existed immediately before the thirty-first day of March nineteen hundred and thirty exclusive of the detached part of that urban district;

“the urban council” means the urban district council of Sittingbourne and Milton and “the urban district” means the urban district of Sittingbourne and Milton.

3.—(1) The unrepealed provisions of the Milton next Sittingbourne Improvement Act 1838 are hereby repealed:

Repeal of  
1 & 2 Vict.  
c. ii. subject  
to continu-  
ance of  
certain  
provisions.

Provided that such of the provisions contained in sections 35 36 and 117 of that Act as are set out in the first schedule to this order shall continue to have effect in the form in which those sections appear in that schedule within that part of the urban district which comprises the included part of Milton Regis.

(2) Such of the provisions of the Lands Clauses Acts the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 as were incorporated with the Milton next Sittingbourne Improvement Act 1838 by article 5 of the Milton next Sittingbourne Order 1884 shall be deemed to be incorporated both with that order and with this order and that article shall be read and have effect accordingly.

(3) Where any of the Acts referred to in subsection (2) of this section has been amended by any public general Act by an unrepealed provision of the Milton next Sittingbourne Order 1884 or by any order of the Board of Trade that amendment of the Act shall continue to have effect.

4. The confirmation Acts mentioned in part I of the second schedule to this order are hereby repealed to the extent shown in the third column of that part of the schedule and the confirmation Act mentioned in part II of that schedule is hereby repealed in so far as it relates to the provisions of the Milton next Sittingbourne Order 1884 which are mentioned in the third column of part II of that schedule.

Repeal of  
confirma-  
tion Acts  
in part.

5. The provisions of the undermentioned provisional orders that is to say—

Extent of  
certain  
provisional  
orders.

(1) The Milton next Sittingbourne Order 1884 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1884;



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|-------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| A.D. 1932.                                            | (2) The Milton next Sittingbourne Order 1901 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901; and |
| —<br><i>Sitting-<br/>bourne and<br/>Milton Order.</i> | (3) The Milton Regis Order 1909 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1909;                  |

shall extend to and be in force within that part of the urban district which comprises the included part of Milton Regis and the limits for the supply of gas by the urban council shall be that part of the urban district which comprises the included part of Milton Regis.

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|----------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Expenses<br>and surplus<br>revenue of<br>gas under-<br>taking. | 6.—(1) Any expense defrayable by the urban council in respect of the gas undertaking which may lawfully be charged to the local rate shall be defrayed by the urban council by means of the levy of an additional item of the general rate of the urban district on that part of the urban district which comprises the included part of Milton Regis. |
|----------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

(2) Any residue of the revenue of the gas undertaking which may lawfully be carried by the urban council to the credit of a rate fund or local rate shall be applied in the relief from the general rate of the urban district of the ratepayers of that part of the urban district which comprises the included part of Milton Regis.

|                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Outstanding<br>loans in<br>respect of<br>gas under-<br>taking. | 7.—(1) Any sums borrowed for the purposes of the gas undertaking by the urban council or by the urban district council of Milton Regis and outstanding at the commencement of this order together with the interest on any such sums are hereby charged on the fund and revenues of the gas undertaking and on the additional item of the general rate of the urban district leviable by the urban council under the preceding section of this order. |
|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

(2) Save as expressly provided in this order nothing contained in it shall prejudice or affect any mortgage or other security which has been granted in respect of any sum borrowed for the purposes of the gas undertaking or the powers of any person entitled under any such mortgage or other security to enforce the same as if this order had not been made.

|                                                       |                                                                                                                                                                  |
|-------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Saving for<br>certain orders<br>of Board of<br>Trade. | 8. Nothing in this order shall affect the provisions of the Milton Regis Gas (Charges) Order 1922 or the Milton Regis Gas Order 1923 made by the Board of Trade. |
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|                                                         |                                                                                                                                                                                            |
|---------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Saving for<br>Sittingbourne<br>district gas<br>company. | 9. Nothing in this order shall alter the area for the supply of gas by the Sittingbourne district gas company or shall prejudice or affect the existing powers or charges of that company. |
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SCHEDULES.

A.D. 1932.

FIRST SCHEDULE.

*Sitting-  
bourne and  
Milton Order.*

PROVISIONS CONTAINED IN SECTIONS 35 36 AND 117 OF THE MILTON NEXT SITTINGBOURNE IMPROVEMENT ACT 1838 (1 & 2 VICT. C. ii) IN THE FORM IN WHICH THEY ARE TO CONTINUE TO HAVE EFFECT WITHIN THE INCLUDED PART OF MILTON REGIS.

*Section 35.*

35. For the purpose of lighting any street lane or other passage or place it shall be lawful for the urban district council of Sittingbourne and Milton to provide and fix or place all necessary lamps lamp posts lamp irons and pipes for the conveyance of gas and other works necessary for the purposes of this section upon or against the walls or fences of any house tenement building or inclosure (doing as little damage thereto as possible) or in such other manner as the council shall think proper.

Attachment  
of lamps  
&c. to walls  
or fences.

*Section 36.*

36.—(1) It shall be lawful for the urban district council of Sittingbourne and Milton to manufacture gas.  
 (2) For the purposes of this section the urban district council may by agreement purchase take and hold land not exceeding in extent three acres in all.

Manufacture  
of gas and  
acquisition  
of land.

*Section 117.*

117. Nothing in this Act shall prejudice lessen or defeat any right interest or property of the lord of the manor and hundred of Milton or any power privilege franchise or authority exercisable by him but all and every such power privilege franchise or authority may be exercised and enjoyed in as full and ample a manner as before the thirtieth day of March eighteen hundred and thirty-eight.

Saving for  
lord of  
manor.



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SECOND SCHEDULE.

*Sitting-  
bourne and  
Milton Order.*

CONFIRMATION ACTS IN PART REPEALED.

PART I.—ENACTMENTS AND PROVISIONAL ORDERS WHICH ARE  
TO CEASE TO HAVE EFFECT.

| Confirmation Act.                                                                                            | Order thereby confirmed.                                                            | Extent of repeal.                                                                                                    |
|--------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|
| The Local Government Board's Provisional Orders Confirmation Act 1874 (No. 3) (37 & 38 Vict. c. lxxxix.)     | The order relating to the district of Sittingbourne dated the 28th day of May 1874. | Section 3 of the Act and so much of the Act as relates to the order mentioned in the second column of this schedule. |
| The Local Government Board's Provisional Orders Confirmation (Arundel &c.) Act 1876 (39 & 40 Vict. c. xiii.) | The Milton next Sittingbourne Order 1876.                                           | So much of the Act as relates to the Milton next Sittingbourne Order 1876.                                           |

PART II.—PROVISIONAL ORDER OF WHICH CERTAIN PROVISIONS  
ARE TO CEASE TO HAVE EFFECT.

| Confirmation Act.                                                                                       | Order thereby confirmed.                  | Extent of repeal.                                                                                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------------------------------|-------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1884 (47 & 48 Vict. c. cxxii.) | The Milton next Sittingbourne Order 1884. | Articles 1 and 2.<br>Paragraphs (2) (3) (5) and (6) of article 3.<br>Paragraph (7) of article 3 from the beginning of that paragraph to the words "reborrowed and" and the proviso to that paragraph.<br>Paragraphs (8) (9) and (10) of article 3.<br>Article 4.<br>Paragraphs (3) to (8) of article 6. |

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